

HOUSE BILL 2461

By Pearson

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 49 and Title 67, Chapter 6, relative to
feminine hygiene products.

WHEREAS, feminine hygiene products are a necessity each month for individuals across the United States; and

WHEREAS, more than half of the United States population will likely menstruate every month for decades of their lives; and

WHEREAS, a lack of feminine hygiene products, often called "period poverty," can adversely affect an individual's health and well-being; and

WHEREAS, period poverty exacerbates the vicious cycle of poverty by further marginalizing individuals who menstruate, causing them to withdraw from daily life, forego pay, or miss educational opportunities; and

WHEREAS, addressing period poverty is essential to ensuring educational equity for diverse populations; and

WHEREAS, studies have shown that one in four women and girls report struggling to afford menstrual products; and

WHEREAS, studies have shown that one in ten college students in the United States are affected by period poverty; and

WHEREAS, period poverty disproportionately affects Black, Latina, immigrant, and first-generation students at higher rates than other cohorts; and

WHEREAS, individuals living in period poverty are more likely to experience depression than individuals with access to period products; and

WHEREAS, period poverty can increase the risk of infections due to the use of substitutes for feminine hygiene products, such as paper towels or toilet paper, and the inability to change feminine hygiene products as frequently as recommended; now, therefore, BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 67, Chapter 6, Part 3, is amended by adding the following as a new section:

(a) There is exempt from the tax imposed by this chapter the sale of feminine hygiene products.

(b) As used in this section, "feminine hygiene product":

(1) Means any product to be used by a woman with respect to menstruation or other genital-tract secretions; and

(2) Includes tampons and sanitary napkins.

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 1, Part 2, is amended by adding the following as a new section:

(a) Upon request of a public school administrator, board, or director of schools, the department of education shall ensure that feminine hygiene products are provided to, and made available to students for free in, the public school.

(b) As used in this section:

(1) "Feminine hygiene product":

(A) Means any product to be used by a woman with respect to menstruation or other genital-tract secretions; and

(B) Includes tampons and sanitary napkins; and

(2) "Public school" has the same meaning as defined in § 49-6-3502.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.